

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3

4 A BILL FOR AN ACT ENTITLED: "AN ACT AUTHORIZING THE DEPARTMENT OF PUBLIC HEALTH AND
5 HUMAN SERVICES TO LIMIT CERTAIN FOODS BASED ON RECOMMENDATIONS FROM THE PANEL ON
6 FOOD SAFETY; CREATING THE PANEL ON FOOD SAFETY; PROVIDING QUALIFICATIONS FOR THE
7 PANEL; REQUIRING THE ADOPTION AND ENFORCEMENT OF RULES BY THE DEPARTMENT OF
8 PUBLIC HEALTH AND HUMAN SERVICES WITH ASSISTANCE FROM THE UNITED STATES FOOD AND
9 DRUG ADMINISTRATION; ESTABLISHING REPORTING REQUIREMENTS; AND AMENDING SECTIONS
10 50-1-202, 50-31-108, 50-31-109, AND 80-1-104, MCA."

11

12 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

13

14 NEW SECTION. **Section 1. Panel on food safety.** (1) There is a panel on food safety.

15 (2) The panel is allocated to the department of public health and human services for administrative
16 purposes only as prescribed in 2-15-121.

17 (3) The panel consists of six members.

18 (a) The governor shall appoint three members, who must have scientific expertise in:

19 (i) chemical risk assessment and safety assessment of food additives and flavoring substances;

20 (ii) toxicology;

21 (iii) toxicity testing;

22 (iv) toxicokinetics and toxicodynamics of substances;

23 (v) chemistry;

24 (vi) exposure assessment and consumption surveys; or

25 (vii) food technology.

26 (b) The speaker of the house shall appoint three members of the public to serve on the panel as
27 representatives of Montana society at large.

28 (c) A representative of the department of public health and human services may participate on the

1 panel as a nonvoting member.

2 (4) Panel members shall serve staggered 4-year terms. A vacancy on the panel for an unexpired
3 term must be filled by appointment by the governor or the speaker of the house. A member who previously
4 served an abbreviated term may be reappointed for a full 4-year term.

5 (5) The panel shall meet quarterly.

6 (6) Panel members shall serve without compensation but may be reimbursed as provided in 2-18-
7 501 through 2-18-503.

8

9 NEW SECTION. **Section 2. Panel on food safety -- purpose.** The panel shall:

10 (1) consider and study the cumulative effect of food additives and color additives in the diet, as
11 well as any chemically or pharmacologically related substances in the diet;

12 (2) set the cumulative amounts that are safe based on the toxicity data the United States food and
13 drug administration has on food additives, consumption statistics, and cumulative effects; and

14 (3) advise and make recommendations to the department of public health and human services on
15 limiting the availability of food containing a food additive or a color additive determined to have a negative, toxic
16 effect.

17

18 NEW SECTION. **Section 3. Panel on food safety -- reporting.** (1) (a) The panel shall compile and
19 submit reports to the department every 12 months.

20 (b) The department shall post a copy of the report on a state digital access system to ensure public
21 access to the report.

22 (2) The panel shall compile and submit a report to the environmental quality council biennially in
23 accordance with 5-11-210.

24 (3) (a) Within 2 years of [the effective date of this act], the panel shall issue a report providing a list
25 of additives for regulation that includes safe levels of additives based on the cumulative amount in the food
26 supply.

27 (b) The report must provide the rationale for the decision reached.

28 (c) The report issued by the panel must be supported by a majority of the panel members.

1 (4) (a) The panel may send out surveys to relevant parties, including but not limited to companies,
2 producers, and manufacturers, to determine current usage of food additives and color additives, as well as any
3 other chemical or pharmacologically related substances determined by the panel.

4 (b) Relevant parties shall provide each panel member with a hard copy and an electronic copy of
5 the information requested by the panel.

6
7 **Section 4.** Section 50-1-202, MCA, is amended to read:

8 **"50-1-202. General powers and duties.** (1) In order to carry out the purposes of the public health
9 system to protect and promote the public health, the department, in collaboration with federal, state, and local
10 partners, shall:

11 (a) make inspections for conditions of public health importance and issue written orders for
12 correction, destruction, or removal of the condition;

13 (b) disseminate information and make recommendations for control of diseases and other
14 conditions of public health importance;

15 (c) at the request of the governor, accept funds for and administer any federal health program for
16 which responsibilities are delegated to states;

17 (d) identify, assess, prevent, and mitigate conditions of public health importance through:

18 (i) epidemiological tracking and investigation;

19 (ii) screening and testing programs;

20 (iii) isolation and quarantine measures;

21 (iv) treatment;

22 (v) abatement of public health nuisances;

23 (vi) inspections;

24 (vii) collecting and maintaining health information; or

25 (viii) other public health measures as allowed by law;

26 (e) promote efforts among public and private sector entities to develop and fund programs or
27 initiatives that identify and ameliorate health problems;

28 (f) develop and promote training for members of the public health workforce;

- 1 (g) bring and pursue actions necessary to abate, restrain, or prosecute the violation of public
2 health laws and rules;
- 3 (h) advise state agencies on the following as they relate to public buildings and facilities:
- 4 (i) location, drainage, water supply, water quality, heating, plumbing, sewer systems, and
5 ventilation; and
- 6 (ii) the disposal of infectious or hazardous wastes;
- 7 (i) develop, administer, and promote activities for the protection and improvement of oral health;
- 8 (j) develop, adopt, and administer rules setting standards for the operation of programs to protect
9 the health of mothers and children, including programs for nutrition, family planning services, improved
10 pregnancy outcome, and programs authorized by Title X of the federal Public Health Service Act, 42 U.S.C.
11 300a, et seq., and Title V of the federal Social Security Act, 42 U.S.C. 501 through 510;
- 12 (k) conduct health education programs;
- 13 (l) provide consultation to school and local public health personnel and consult with the
14 superintendent of public instruction on conditions of public health importance for schools;
- 15 (m) develop, adopt, and administer rules setting standards for a program to provide services to
16 children with special health care needs, including standards for:
- 17 (i) diagnosis;
- 18 (ii) medical, surgical, and corrective treatment;
- 19 (iii) aftercare and related services; and
- 20 (iv) eligibility;
- 21 (n) provide consultation to local boards of health;
- 22 (o) promote cooperation and formal collaborative agreements between the state and tribes, tribal
23 organizations, and the Indian health service regarding public health planning, priority setting, information and
24 data sharing, reporting, resource allocation, funding, service delivery, jurisdiction, and other public health
25 matters addressed in this title;
- 26 (p) adopt and enforce rules regarding:
- 27 (i) the reporting and control of communicable diseases and other conditions of public health
28 importance;

- 1 (ii) the imposition of fees for testing, screening, and other services performed by the state
 2 laboratory;
- 3 (iii) the transportation of dead human bodies;
- 4 (iv) the issuance of licenses to laboratories that conduct analysis of public water supply systems;
 5 and
- 6 (v) public health requirements for school sites, including water supply and quality, sewage and
 7 waste disposal, and any other matters pertinent to the health and physical well-being of pupils, teachers, and
 8 others; ~~and~~
- 9 (q) take measures to prevent and alleviate threats to the public health from the release of
 10 biological, chemical, or radiological agents capable of causing imminent infection, disability, or death; and
- 11 (r) adopt and enforce, with the cooperation and coordination of the United States food and drug
 12 administration, rules designed to limit the availability of food containing a food additive or a color additive
 13 identified by the panel on food safety as having a negative, toxic effect based on a cumulative effects analysis
 14 of food additives and color additives conducted pursuant to [section 3].
- 15 (2) The department:
- 16 (a) has the power to use personnel of local public health agencies to assist in the administration of
 17 laws relating to public health services and functions; and
- 18 (b) may provide, implement, facilitate, or encourage other public health services and functions as
 19 considered reasonable and necessary."

20

21 **Section 5.** Section 50-31-108, MCA, is amended to read:

22 **"50-31-108. Regulations concerning additives.** (1) The department, ~~upon~~ on its own motion or
 23 ~~upon~~ on the petition of any interested party requesting that a rule be established, whenever public health or
 24 other considerations in the state require, is authorized to adopt, amend, or repeal rules, whether or not in
 25 accordance with regulations promulgated under the federal act, that are for:

- 26 (a) prescribing tolerances for any added poisonous or deleterious substances for food additives,
 27 for pesticide chemicals in or on raw agricultural commodities, or for color additives, including but not limited to
 28 zero tolerances and exemptions from tolerances in the case of pesticide chemicals in or on raw agricultural

1 commodities; and

2 (b) prescribing the conditions under which a food additive or a color additive may be safely used
3 and exemptions when the food additive or color additive is to be used solely for investigational or experimental
4 purposes; and

5 (c) limiting the availability of food containing a food additive or color additive identified by the panel
6 on food safety as provided for in [section 1] as having a negative, toxic effect based on a cumulative effects
7 analysis of food additives and color additives conducted pursuant to [section 3].

8 (2) A petitioner or the panel on food safety shall establish by data submitted to the department that
9 a necessity exists for the rule and that its effect will not be detrimental to the public health.

10 (a) If the data furnished by the petitioner or the panel on food safety is not sufficient to allow the
11 department to determine whether the regulation should be promulgated, the department may require additional
12 data to be submitted, and

13 (b) failure-Failure to comply with the department's request is sufficient grounds to deny the
14 petitioner's or the panel's request.

15 (3) In adopting, amending, or repealing rules relating to the substances, the department shall
16 consider among other relevant factors the following, which the petitioner, if any, or the panel on food safety
17 shall furnish:

18 (a) the name and all pertinent information concerning the substance, including, when available:

19 (i) its chemical identity and composition;

20 (ii) a statement of the conditions of the proposed use, including directions, recommendations, and
21 suggestions, and including specimens of proposed labeling; and

22 (iii) all relevant data bearing on the physical or other technical effect and the quantity required to
23 produce the effect;

24 (b) the probable composition of or other relevant exposure from the article and of any substance
25 formed in or on a food, drug, or cosmetic resulting from the use of the substance;

26 (c) the probable consumption of the substance in the diet of humans and animals, taking into
27 account any chemically or pharmacologically related substance in the diet;

28 (d) safety factors that, in the opinion of experts qualified by scientific training and experience to

1 evaluate the safety of the substances for the use or uses for which ~~they~~ the substances are proposed to be
 2 used, are generally recognized as appropriate for the use of animal experimentation data;

3 (e) the availability of any needed practicable methods of analysis for determining the identity and
 4 quantity of:

5 (i) the substance in or on an article;

6 (ii) any substance formed in or on the article because of the use of the substance; and

7 (iii) the pure substance and all intermediates and impurities; and

8 (f) facts supporting a contention that the proposed use of the substance will serve a useful
 9 purpose.

10 (4) The department may not establish rules related to food additives under this section for
 11 homemade food or a homemade food product sold pursuant to Title 50, chapter 49, part 2."

13 **Section 6.** Section 50-31-109, MCA, is amended to read:

14 **"50-31-109. Use of additives.** ~~Any added poisonous or deleterious substance, any food additive, any~~
 15 ~~pesticide chemical in or on a raw agricultural commodity, or any color additive shall, with respect to any~~
 16 ~~particular use or intended use, be deemed unsafe for the purpose of application of 50-31-202(2) with respect to~~
 17 ~~any food, 50-31-305(1) through (5) with respect to any drug or device, or 50-31-401(1) with respect to any~~
 18 ~~cosmetic unless there is in effect a regulation pursuant to 50-31-108 limiting the quantity of such substance and~~
 19 ~~the use or intended use of such substance conforms to the terms prescribed by such regulation. While such~~
 20 ~~regulation relating to such substance is in effect, a food, drug, or cosmetic shall not by reason of bearing or~~
 21 ~~containing such substance in accordance with the regulation be considered adulterated within the meaning of~~
 22 ~~50-31-202(1), 50-31-305(1) through (5), or 50-31-401(1).~~

23 (1) Any added poisonous or deleterious substance, food additive, or color additive or any pesticide
 24 chemical in a raw agricultural commodity is considered unsafe for the purposes of:

25 (a) the application of 50-31-202(2) with respect to any food, within the guidelines set by the panel
 26 on food safety established in [section 1];

27 (b) the application of 50-31-305(1) through (5) with respect to any drug or device; or

28 (c) the application of 50-31-401(1) with respect to any cosmetic.

(2) If an added substance is present that conforms to quantity regulation pursuant to 50-31-108, then the food, drug, or cosmetic may not be considered adulterated within the meaning of 50-31-305(1) through (5), or 50-31-401(1)."

Section 7. Section 80-1-104, MCA, is amended to read:

"80-1-104. Analytical laboratory services -- rulemaking authority -- deposit of fees. (1) The department is authorized to provide analytical laboratory services for:

- (a) programs it operates under this title;
- (b) other state or federal agencies;
- (c) the department of revenue for the purposes of Title 16, chapter 12, as allowed by federal law;
- and
- (d) private parties; and
- (e) the panel on food safety established in [section 1].

(2) The department may enter into a contract or a memorandum of understanding for the space and equipment necessary for operation of the analytical laboratory.

(3) (a) The department may adopt rules establishing fees for testing services required under this title or provided to another state agency, a federal agency, ~~or a private party,~~ or the panel on food safety.

(b) Money collected from the fees must be deposited in the appropriate related account in the state special revenue fund to the credit of the department to pay costs related to analytical laboratory services provided pursuant to this section."

NEW SECTION. Section 8. Transition. (1) Within 60 days of [the effective date of this act], the governor shall appoint three panel members who fulfill the requirements of [section 1].

(2) Within 60 days of [the effective date of this act], the speaker of the house of representatives shall appoint three panel members who fulfill the requirements of [section 1].

(3) To create staggered 4-year terms:

- (a) two members must be appointed to a 2-year term;
- (b) two members must be appointed to a 3-year term; and

1 (c) two members must be appointed to a 4-year term.

2 (4) After the expiration of a term provided for in subsection (3), the governor and the house of
3 representatives shall appoint a person to serve a full 4-year term as provided in [section 1].

4

5 NEW SECTION. **Section 9. Codification instruction.** (1) [Section 1] is intended to be codified as an

6 integral part of Title 2, chapter 15, part 22, and the provisions of Title 2, chapter 15, part 22, apply to [section 1].

7 (2) [Sections 2 through 3] are intended to be codified as an integral part of Title 50, chapter 31,
8 part 2, and the provisions of Title 50, chapter 31, part 2, apply to [sections 2 through 3].

9 - END -